

24STCV26268 24STCV26268

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Case Number: 24STCV26268 Hearing Date: August 28, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

28, 2026 TRIAL

DATE: September 14, 2026

CASE: Shannon K. Paulson, et al. v. SAI Long Beach B, Inc., et al.

CASE NO.: 24STCV26268

DEFENDANTS'

MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION

MOVING PARTY: Defendant

BMW

of North America, LLC

RESPONDING PARTY:

Plaintiffs

Shannon K. Paulson and Staci L. Blevins

In June 2024, Plaintiffs, Shannon K. Paulson and Staci

L. Blevins, leased a 2024 BMW 15 ("Vehicle").

Later, Plaintiffs learned that the manufacturer of the Vehicle had put a stop sale order of the Vehicle due to an open recall on the Vehicle's brake assistance system. Plaintiffs asked the

manufacturer for a refund, which the manufacturer refused. This action followed.

I. BACKGROUND

On October 9, 2024, Plaintiffs commenced this action.

On December 4, 2025, Plaintiffs filed the operative First Amended Complaint ("FAC") against Defendants, SAI Long Beach B, Inc.; BMW of North America, LLC; BMW Financial Services NA, LLC; and Berkeley Insurance Company, alleging causes of action for (1) violations of the Consumers Legal Remedies Act, (2) intentional misrepresentation, (3) concealment, (4) negligent misrepresentation, (5) failure to commence repairs within a reasonable time and to complete them within 30 days; (6) breach of the implied warranty of merchantability, (7) violations of the Unfair Competition Law, and (8) cause of action under Vehicle Code § 11711.

On May 26, 2026, BMW of North America, LLC ("BMW" or "Defendant") filed this motion for summary judgment, or in the alternative, summary adjudication.[1]

On August 7, 2026, Plaintiffs filed an opposition.

On August 17, 2026, Defendant filed a reply.

II. EVIDENTIARY OBJECTIONS

Plaintiffs submit twelve objections to portions of the declaration of Christopher Grube and exhibits attached thereto.

The objections are OVERRULED.

III. JUDICIAL NOTICE

BMW's unopposed request for judicial notice is GRANTED.

IV. LEGAL STANDARD

The function of a motion for summary judgment or summary adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Id.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, 159 Cal.App.4th at p. 467; Code Civ. Proc., § 437c, subd. (c).)

V. DISCUSSION

BMW moves for summary judgment, or in the alternative, summary adjudication of the first, fifth, sixth, and seventh causes of action. The court addresses the challenges in turn.

A. Violations
of the Consumers Legal Remedies Act (1st COA)

The FAC alleges that BMW violated the Consumer Legal Remedies Act (CLRA) by: “(1) misrepresenting the condition of the Vehicle; (2) representing the Vehicle as original or new when it was deteriorated unreasonably or was altered, reconditioned, reclaimed, used, or second-hand; (3) allowing Dealer to represent the Vehicle was available for sale when (sic) should not have been sold to my clients; (4) concealing the condition of the Vehicle; (5) concealing the recall on the Vehicle from Plaintiffs; and (6) concealing the stop sale order from Plaintiffs.” (FAC, ¶ 33.)

BMW argues the first cause of action fails because (1) the recall did not include the Vehicle at the time of lease; (2) Plaintiff’s notice to cure demand on October 29, 2024 is procedurally defective.

The essential factual elements of a CLRA violation are: (1) that plaintiff purchased the produce for personal purposes, (2) the defendant violated one of the prohibited practices, (3) plaintiff was harmed, and (4) that harm resulted from defendant’s conduct. (CACI No. 4700.) A plaintiff’s harm results from the defendant’s conduct if the plaintiff relied on defendant’s representation. To prove reliance, plaintiff need only prove that the representation was a substantial factor in his decision, not the primary or only factor. (Id.)

Pursuant to section 1782, subdivision (a), of the CLRA, at least 30 days prior to the commencement of an action for damages, the consumer shall “(1) Notify the person alleged to have employed or committed methods, acts, or practices declared unlawful by Section 1770 of the particular alleged violations of Sections 1770” and “(2) Demand that the person correct, repair, replace, or otherwise rectify the goods or services alleged to be in violation of Section 1770.” (Civ. Code, § 1782, subd. (a)(1)-(2).) 2

In support, BMW offers undisputed

evidence that Plaintiffs leased the Vehicle on June 28, 2024, the recall was not expanded to include Plaintiffs' VIN until August 12, 2024 and thus the Vehicle was properly available for lease.

(See BMW's Separate Statement of Undisputed Material Facts (UMF), Nos. 2-4.) BMW establishes the only basis for the CLRA claim is false. BMW meets its initial burden.

The burden shifts.

Plaintiffs do not meet their burden. Conceding as they must that BMW expanded the recall after Plaintiffs leased the Vehicle, Plaintiffs attempt to shift their theory of liability. Plaintiffs now argue that they "believe evidence may exist that shows BMW put Plaintiffs' vehicle, and almost 12,000 others, into the stream of commerce knowing that it was defective and was going to be recalled."

(Opp., p. 2:24-25.) This argument fails for two reasons. First, Plaintiffs reveal they do not presently have evidence to support the belief. Second, this is not the theory they alleged in the FAC. The first cause of action fails.

B. Failure

to Commence Repairs Within a Reasonable Time and to Complete Them Within 30 Days, Civil Code § 1793.2(b) (5th COA)

The FAC

alleges that Plaintiffs failed to commence the service or repairs within a reasonable time and failed to service or repair the Vehicle so as to conform to the applicable warranties within 30 days in violation of Civil Code section 1793.2(b). (FAC, ¶ 81.)

BMW argues there

is no evidence that they refused to commence the repairs or that the repairs were not completed within 30 days.

Section

1793.2(b) requires that "where ... service or repair of ... goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative." In the absence of a contrary written agreement in writing, within a reasonable time means "within 30 days." (Civ. Code, § 1793.2(b).)

“Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay.” (Civ. Code, § 1793.2(b).)

In support,

BMW offers evidence to show that (i) Plaintiffs did not have the recall repair done until it was convenient for them to do so and delayed bringing the Vehicle in for repairs under the advice of their lawyer (Blevins Depo., p. 13:10-18; Paulson Depo., p.15:23-25), and (ii) the repairs were completed in three days (UMF 6). BMW meets its initial burden.

The burden shifts.

In opposition, Plaintiffs do not address this evidence at all. Having failed to offer any evidence or argument to show there exists a triable issue of disputed fact, the fifth cause of action fails.

C. Breach

of the Implied Warranty of Merchantability (6th COA)

As best the court can tell, the only complaint asserted against BMW in the FAC is Plaintiff's erroneous belief that the recall was in effect as to their Vehicle when they leased it.

Civil Code section 1791.1 provides, in part: “Implied warranty of merchantability” or “implied warranty that goods are merchantable” means that the consumer goods meet each of the following:

(1) Pass without objection in the trade under the contract description;

(2) Are fit for the ordinary purposes for which such goods are used;

(3) Are adequately contained, packaged, and labeled;

(4) Conform to the promises or affirmations of fact made on the container or label.

(Civ. Code §1791.1(a).) Not

every minor complaint constitutes a breach of implied warranty.

BMW argues

the sixth cause of action fails because, as discussed, the recall was not in effect at the time Plaintiffs leased the Vehicle. BMW argues the claim fails for the further reason that the Vehicle was fit for the ordinary purposes for which such goods were used.[2] In support, BMW points to Plaintiffs deposition testimony wherein Plaintiffs admitted they drove the Vehicle nearly 1,000 miles before the recall expansion, admitted the Vehicle functioned normally before the recall expansion, and was “fine after the 3-day report. (UMF Nos 5-6.) BMW meets its initial burden to show the Vehicle was fit for the ordinary purposes for which the goods were sold.

The burden shifts.

Plaintiffs do not dispute this evidence at all. Having failed to offer any evidence or argument to show there exists a triable issue of disputed fact, the sixth cause of action fails.

D. Violations

of the Unfair Competition Law (7th COA)

The seventh

cause of action against BMW is premised on BMW’s violation of the CLRA. When the underlying statutory claims fail, the UCL claim must also fail as a matter of law. (Cel–Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 182.) Because the court first cause of action for violations of the CLRA fails, so too does seventh cause of action. To the extent Plaintiffs contend that BMW engaged in deceptive or fraudulent practices, the contention fails for two reasons. First, the only allegation against BMW in the FAC is the leasing of the Vehicle to Plaintiffs when the recall was issued. However, as discussed above, the recall did not include the Vehicle at the time of the lease. Second, there is no alleged fraud against BMW. Plaintiffs fail to show there is a predicate unlawful, unfair, or fraudulent practice supporting their UCL claim.

E. Miscellaneous

Issues

Plaintiffs

argue the motion should be denied because BMW's separate statement does not comply with California Rules of Court, rule 3.1350(h). The argument fails. BMW supplied the facts to establish its entitlement to summary judgment. The court does not find procedural error requiring denial of the motion.

Plaintiffs

next request a continuance of the hearing to obtain discovery regarding Plaintiffs' changed theory of liability against BMW. However, BMW has successfully shown there is no triable issue of fact as to the alleged theories of liability. Further, Plaintiffs do not meet their burden to show the evidence may exist. Accordingly, the request for a continuance is DENIED.

VI. CONCLUSION

Based on the foregoing, the motion for summary judgment is GRANTED.

Moving party to give notice, unless waived.

Dated: August 28,
2026

Brock T. Hammond

Judge of the Superior Court

[1] Defendants SAI Long Beach B, Inc.; BMW Financial Services NA, LLC; and Berkeley Insurance Company are also moving parties. Because Plaintiffs dismissed these defendants before the hearing on this motion, the motion is partly moot. The court proceeds only to consider BMW's challenges to the remaining causes of action.

[2] BMW also argues the fifth cause of action fails because it is not a manufacturer within the meaning of section 1791.1. The court need not and does not address this argument.